

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 13, 2026 TIME: 8:30 A.M.

[Citations.] The showing required of a petitioner seeking leave to file a late claim on these grounds is the same as that required by Code of Civil Procedure section 473 for relieving a party from default judgment. [Citations.]” (*People ex rel. DOT v. Superior Court* (2003) 105 Cal.App.4th 39, 43-44.) Therefore, the petition is denied.

RESPONDENT’S REQUEST FOR JUDICIAL NOTICE

1. Petitioner’s Application to Present a Late Claim, dated August 26, 2025 (Ex. A).
Granted.
2. City’s Notice of Action on Petitioner’s Application for Leave to Present a Late Claim, dated October 1, 2025 (Ex. B). Granted.

No. 25CV00045

SANTA CRUZ RIVERFRONT ASSOC. v. MEISSER

**DEFENDANT LISA M. MEISSER AS TRUSTEE’S MOTION FOR
PRELIMINARY INJUNCTION**

Defendant Meisser’s motion is continued to October 1, 2026, to be heard with her motion to appoint a referee. In the interim, plaintiff Santa Cruz Riverfront Associates, L.P. shall make no distributions to any limited partner, including Meisser.

Plaintiff filed its first amended complaint against Lisa M. Meisser as Trustee of the Everett and Lisa Meisser Trust (“defendant”) for conversion, unjust enrichment, fraud, breach of fiduciary duty and disassociation of limited partner on February 11, 2025. The action relates to a former partnership between Everett Meisser (“Everett”) and Jeffrey Newhouse (“Jeffrey”) and others from 1982 through 1989. The partners formed Santa Cruz Riverfront Associates in 1982 for the purpose of acquiring real property for development. Everett was also the CPA for the firm. At some point, Everett allegedly told the remaining partners that he paid \$50,000.00 to the firm in exchange for an 8% limited partnership interest; he also individually received a 4% limited partnership interest. Everett’s general partnership interest ended in 1989. (Second Amended Complaint (“SAC”), ¶¶ 8-23.)

This action was triggered by a 2023 conversation between Jeffrey and Everett, nine months before Everett died. Jeffrey, still a general partner of the firm, was allegedly told by Everett in October 2023 that another partner failed to pay for his 4% interest and that both he (Everett) and this other partner received the 4% interest as part of a bonus received by all general partners at firm formation. However, Jeffrey did not receive that same bonus and asked for an

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accounting of the bonus; Jeffrey says he never received such nor found any evidence in the firm's records supporting such a bonus. Jeffrey thereafter demanded that Everett return the 4% interest, which he claims Everett refused to do. The firm's counsel sent a letter to Everett requesting evidence that the 4% interest was conferred as a bonus, but did not receive a response. Everett died on June 2, 2024. (SAC ¶¶ 27-23.) Jeffrey believes that Everett's trust includes the ill-gotten 4% interest.

No. 16CV01899

GRANNY PURPS, INC., et al. v. COUNTY OF SANTA CRUZ, et al.

**DEFENDANT/CROSS-COMPLAINANT'S MOTION FOR SUMMARY
JUDGMENT/ADJUDICATION**

Defendant County of Santa Cruz's motion for summary adjudication is granted. Cross-defendants failed to establish, by admissible evidence, the existence of any disputed triable factual issues, as detailed below.

I. FACTUAL AND PROCEDURAL BACKGROUND

This case was filed on July 26, 2016, by Granny Purps, Inc., a cannabis cultivator, against the County of Santa Cruz ("the County"), Sheriff Jim Hart and Deputy Frank Gombos, following two Sheriff's Department raids in which 1800 marijuana plants were destroyed in the first raid and 700 in a second raid. The complaint alleges causes of action for negligent destruction of property, conversion, trespass, inverse condemnation, declaratory relief, and preliminary and permanent injunction. On June 23, 2017, Granny Purps filed a first amended complaint and petition for writ of mandate against the same defendants. The first amended complaint alleges causes of action for writ of mandate, conversion, trespass, inverse condemnation, declaratory relief, preliminary and permanent injunction, and specific recovery of property.

On April 25, 2017, Granny Purps filed an amended verified petition for writ of administrative mandamus or writ of mandamus (case no. 17CV00837 or "the Writ Case") against the County concerning the County's denial of a cannabis dispensary license it applied for. On October 12, 2017, the court entered a stipulated judgment against Granny Purps in favor of the County on the County's cross-complaint in the Writ Case. (RJN # 11.) The stipulated judgment was signed by Nancy Black, Nancy Sudman, and Jeffrey Sudman on behalf of Granny Purps. The judgment ordered Granny Purps to pay the County \$1,6725,500.00 for fines related to operating an unlicensed dispensary. The judgment stated that by October 31, 2017, Granny Purps